

25STCV23355 25STCV23355

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-08-07

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Case Number: 25STCV23355 Hearing Date: August 7, 2026 Dept: 414

25STCV23355 Pedro Armando Serna v. Christian Guardado, et al.

Friday, August 7, 2026

[TENTATIVE] ORDER TAKING

OFF CALENDAR PLAINTIFF, PEDRO ARMANDO SERNA'S, MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S DEMAND FOR INSPECTION AND PRODUCTION OF DOCUMENTS, SET ONE, PROPOUNDED ON DEFENDANT, LOURDES ANGUIANA; REQUEST FOR SANCTIONS (6334)

[TENTATIVE] ORDER GRANTING

PLAINTIFF, PEDRO ARMANDO SERNA'S, MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S DEMAND FOR INSPECTION AND PRODUCTION OF DOCUMENTS, SET ONE, PROPOUNDED ON DEFENDANT, CHRISTIAN GUARDADO; REQUEST FOR SANCTIONS (1980)

I. ARGUMENTS

This

action arises from an alleged motor vehicle accident. Plaintiff requests an order to compel further responses to document requests served on Defendants, Christian Guardado and Lourdes Anguiano and to impose sanctions.

The

court has reviewed both motions, oppositions, and replies thereto, separate statements and all declarations in support.

II.

LEGAL STANDARDS

A motion to compel further responses to a document request is proper where the requesting party believes the statement of compliance is incomplete or a representation of inability to comply is inadequate, incomplete, or evasive and/or an objection in the response is without merit or too general.

(Code Civ. Proc., § 2031.310.) The moving party is required to submit a declaration attesting that the parties met and conferred prior to filing the motion. (Code Civ. Proc., § 2030.220.)

III.

DISCUSSION

On

June 3, 2026, the parties submitted a joint separate statement. The only requests remaining at issue are Requests for Production of Documents Nos. 15 and 33, which request Guardado's cellular phone records in the moments leading up to, during, and shortly after the collision to determine whether Guardado was contemporaneously using his cell phone at the time of the collision.

The Court presumes that the discovery at issue consists of Requests for Production of Documents Nos. 15 and 33 propounded to Defendant Christian Guardado. As described in the joint separate statement, those requests seek Guardado's cellular phone records. In contrast, Request for Production No. 15 propounded to Defendant Lourdes Anguiano does not seek cell phone records; it requests documents upon which Anguiano relied or referenced in responding to Plaintiff's Special Interrogatories, Set One. Plaintiff did not propound Request for Production No. 33 to Anguiano. Accordingly, the Court construes the present motion as directed solely to Guardado's Requests for Production Nos. 15 and 33.

RPD 15 addressed to Christian Guardado requests any and all cell phone records (to include but not limited to phone bills) which relate to the incident, within 30 minutes before or 30 minutes after the incident. Defendant responded with objections. In his opposition, Guardado argued that Plaintiff must present case-specific facts why Defendant's telephone use has any probative value and case-specific facts about the accident that distracted driving was a potential contributing factor to this accident. (Opp. 8:13-20.)

Plaintiff alleges a claim for negligence, asserting the driver negligently operated the car. Plaintiff is entitled to discover all the conduct constituting negligence substantially contributed to the incident that caused damage to Plaintiff. The complaint provides sufficient "specific" facts to warrant discovery of the records.

RPD 33 requests documents relating to any cellular phone use by Defendant within ten

minutes of the incident. This is equally discoverable for the same reasons.

Defendants contend in the joint separate statement that "Defendants no longer use Verizon as their cellular service provider and have tried but have been unable to access the records of their old account with Verizon." (Jt SS, .pdf 3:2-4.) Defendant did not provide this response under penalty of perjury. Rather Defendant objected to the request. The statute requires the responding party to affirm, where the party is unable to comply with the request, that the item is not "in the possession, custody, or control of the responding party" and provide the address of the person who does have the documents. (Cal. Code Civ. Procedure § 2031.280.)

Plaintiff files a supplemental declaration stating that counsel has since been in contact with counsel for Cellco Partnership d/b/a Verizon Wireless ("Verizon") regarding the subpoenaed records responsive to Requests for Production Nos. 15 and 33. Verizon advised it could not release the records without Defendant's signature and authorization. (Supp Meagle decl., ¶ 2.) This confirms that the records are available and remain in Defendants' control contrary to Defendants' claim. Requests 15 and 33 seek relevant and discoverable records.

Plaintiff is entitled to an award of sanctions because Defendant's objections do not have merit, nor has Defendant shown substantial justification for objecting and refusing to produce the records. (Cal. Code Civ. Procedure § 2023.030.) Plaintiff spent and will have spent 11 hours to prepare the Motion re Christian, the reply, and to appear. Plaintiff's hourly rate of \$400 is reasonable. Accordingly, sanctions of \$4,460 is imposed plus \$60 in filing fees. (Zheng decl., ¶ 10.)

IV.

CONCLUSION

The parties appear to have resolved the requests propounded on Lourdes because the remaining requests about cell records were propounded to Christian. Therefore, the motion regarding Anguiana's responses is taken off calendar (6334).

The motion to compel further responses to Request for Production of Documents served on Christian Guardado is GRANTED. Defendant is ordered to serve verified, code-compliant responses to requests 15 and 33 without objection and production of documents responsive to the request within 20 days. The Court imposes sanctions of \$4,460 in fees and \$60 in costs against Defendant Christian Guardado and his counsel Courtney D. Flannery & Associates, jointly and severally, payable to Plaintiff within 20 days.